

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.9618/2011

Muhammad Idrees VS District Officer (Revenue) etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
----------------------------------	---------------------------------	---

01.09.2015 Mr. Muhammad Akram Chaudhry, Advocate on behalf
of the petitioner.
Ms. Asma Hamid, Addl. Advocate General.

Through this writ petition, the petitioner has challenged the order dated 24.2.2010 passed by the District Officer (Revenue)/Collector, Sialkot whereby he rejected the petitioner's application for refund of stamp papers worth Rs.1,40,000/- and order dated 24.8.2010 whereby the Senior Member/Chief Revenue Authority, Board of Revenue, Punjab, dismissed the revision petition of the petitioner.

2. Brief facts for the disposal of this petition are that on 23.6.2009, the petitioner purchased non-judicial stamp papers worth Rs.1,40,000/- from Sadder Treasury, Sialkot and on the same date, the sale deed was written/ executed thereon but the same could not be finalized due to some dispute between the parties. Hence, on 19.12.2009, the petitioner submitted an application for refund of these stamp papers to the District Collector (Revenue)/ Collector, Sialkot, who dismissed the same vide order dated 24.2.2010. Being aggrieved of the same, the petitioner filed a revision petition, which was also dismissed by the Senior Member/Chief Revenue

Authority, Board of Revenue, Punjab, holding the application as time barred vide order dated 24.8.2010. Hence, this writ petition.

3. It has been contended on behalf of the petitioner that the impugned orders are against the law and facts of the case; that while passing the impugned orders, the Revenue authorities have not applied their judicious mind to the facts and circumstances of the case; and that the case of the petitioner is fully covered under Section 50 (3) of the Stamp Act, 1899, which provides a period of six months for filing the application for refund of stamp papers but the Senior Member/Chief Revenue Authority, Board of Revenue, Punjab has illegally dismissed the petitioner's revision petition holding that under Section 49(d) (5) read with Section 50 (1) of the Stamp Act, 1899, the prescribed period for refund of stamp papers is two months, as such, the impugned orders are illegal and liable to be set aside.

4. Contrarily, the learned law officer has supported the impugned orders on the ground that the case of the petitioner comes within the purview of Section 49(d) (5) read with Section 50 (1) of the Stamp Act, 1899, as such, the Revenue authorities have rightly passed the impugned orders.

5. Heard. Record perused.

6. It is an admitted fact that on 23.6.2009 the petitioner had purchased non-judicial stamp papers valuing Rs.1,40,000/- from Sadler Treasury, Sialkot, on which, a sale deed was written/executed but the same could not be completed due to some dispute between the parties. So, on 19.12.2009, the petitioner submitted an

application before the District Collector (Revenue), Sialkot for refund of these stamp but he rejected the same being time barred vide order dated 24.2.2010. Similarly, the Senior Member/Chief Revenue Authority, Board of Revenue, Punjab has also dismissed the petitioner's revision petition holding the petitioner's application for refund of stamp papers as time barred vide order dated 24.8.2010 by observing that case of the petitioner is covered under Section 49(d)(5) read with Section 50(1) of the Stamp Act, 1899, but the same is not in consonance with the law for the reasons that the order dated 24.2.2010 is not a speaking order as it is just an intimation to the petitioner that his application has been rejected being time barred; and that it is nowhere mentioned in the revision petition of the petitioner that the sale deed could not be completed due to refusal rather some dispute had arisen between the parties due to which the sale deed could not be registered and later on, the parties settled the said dispute and the petitioner got registered a sale deed in favour of the same purchaser on new stamp papers. Hence, in these circumstances, the case of the petitioner falls under the ambit of Section 49 (d) (6) read with 50(3) of the Stamp Act, 1899, which prescribes a period of six months for refund of stamp, as such, the application for refund of stamp papers was filed within time by the petitioner. So, I am of the considered view that the impugned orders are patently illegal and the revenue authorities have not applied their judicious mind while passing the same. Reliance is placed on the cases of "Zahid Pervaiz VS Commissioner Rawalpindi Division Rawalpindi and 3 others" (PLJ 2004 Lahore 567) and "Riaz Hussain VS Board of Revenue Punjab through Senior Member and 2 others" (2010 CLC 1575).

7. In view of the above, the instant writ petition is accepted and the impugned orders dated 24.2.2010 and 24.8.2010 are hereby set aside with the direction to the respondents to issue refund of the above said stamp papers to the petitioner immediately.

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge

Naeem